

Ref No.: BD-CW-SAMCO-ACE-LET-STR-075

30-April-2026

To: ACE Project Management | Moharram Bakhoun
Attention: Eng. Abdulaziz Mohamed (Project Manager)
Project Name: The Big Business District.
Contract/Package: Construction Works.
Subject: Re: BD-ACEPM-SAMCO-LET-031



Dear Sir,

We acknowledge receipt of your letter Ref. BD-ACEPM-SAMCO-LET-031 dated 19/04/2026 regarding the Interim Payment Certificates (IPCs).

We would like to provide the following clarifications

1. Application for Interim Payment Certificates

With reference to Sub-Clause 14.3 [Application for Interim Payment Certificates], the Contractor is entitled to submit monthly Applications for Interim Payment Certificates.

2. Impact of Project Constraints

The Contractor would like to highlight that the progress and value of executed Works have been affected by factors beyond its control, including but not limited to:

- Delays in the supply of reinforcement steel in accordance with Sub-Clause 4.20 [Employer's Equipment and Free-Issue Material]
- Delays in review and approval processes under Sub-Clause 1.8 [Care and Supply of Documents]
- Issuance of revised structural information during execution
- Delays in instructions and responses affecting site progress

These factors have had a direct impact on the rate of progress and consequently on the value of submitted IPCs.

3. Reservation of Rights

Without prejudice to the Contractor's rights under the Contract, including Sub-Clause 8.4 [Extension of Time for Completion] and Sub-Clause 1.9 [Delayed Drawings or Instructions], the Contractor expressly reserves its entitlement to:

- Extension of Time (EOT)
- Any associated costs arising from the above matters
- Any other contractual rights and remedies available under the Contract

4. Way Forward

The Contractor remains committed to maintaining progress of the Works and ensuring full cooperation with all parties. We kindly request your continued support in facilitating timely certification and payment of IPCs in accordance with the Contract provisions.

Yours faithfully,

Eng./ Mohammed Sami Mohammed
Project Director
SAMCO National Construction

